IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CRIMINAL APPELLATE JURISDICTION
CRIMINAL APPEAL NO. 918 OF 2024
(Under Section 374(2) of the Code of Criminal Procedure, 1973)

Ganesh Vithal Pawar,
S/o Shri Vithal Bhau Pawar, aged about 36 years,
presently confined in Yerwada Central Prison, Pune
... Appellant

Versus

The State of Maharashtra ... Respondent

MEMORANDUM OF CRIMINAL APPEAL

The Appellant above named begs to prefer this appeal against the judgment and order of conviction dated 22/01/2024 passed by the learned Additional Sessions Judge, Pune in Sessions Case No. 88 of 2021, convicting the Appellant under Section 304 Part II of the Indian Penal Code and sentencing him to suffer rigorous imprisonment for seven years and to pay a fine of Rs. 25,000/-, on the following

GROUNDS OF APPEAL

1. The learned trial Judge erred in convicting the Appellant when the prosecution failed to prove the chain of circumstances beyond reasonable doubt.

2. The learned trial Judge placed undue reliance on the testimony of PW-3 which was materially contradicted by PW-5 and by the medical evidence on record.

3. The learned trial Judge failed to appreciate that the recovery relied upon was not proved in accordance with Section 27 of the Indian Evidence Act, 1872.

4. The sentence imposed is in any event excessive having regard to the age and antecedents of the Appellant.

PRAYER

It is therefore prayed that this Hon'ble Court may be pleased to:
(a) set aside the judgment and order of conviction and sentence dated 22/01/2024 and acquit the Appellant;
(b) in the alternative, reduce the sentence already undergone; and
(c) pending the hearing of the appeal, suspend the sentence and release the Appellant on bail.

Mumbai Advocate for the Appellant
Dated: 18/03/2024 Shri Nitin Ramesh Salvi